SITE LEASE AGREEMENT

This **SITE LEASE AGREEMENT** (this "**Lease**") is effective the date of the last signature on this Lease (the "**Effective Date**") by and between LINCHRIS TYBEE RESORT, LLC, a Delaware limited liability company ("**Landlord**"), and T-Mobile South LLC, a Delaware Limited Liability Company ("**Tenant**").

Landlord and Tenant agree to the following:

1. **Property and Premises Description.** Landlord is the owner of the real property located at 1401 Strand Ave, Tybee Island, GA 31328, as further described on **Exhibit A** (the "**Property**"). Landlord leases to Tenant a certain portion of the roof (the "**Premises**") of the building ("**Building**") located on the Property as more particularly described or depicted on **Exhibit B** in order to install the Antenna Facilities (as defined in Section 3(a) of this Lease)**.** During the Term of the Lease, Landlord grants to Tenant the following non-exclusive easements ("**Easements**"): (a) a non-exclusive easement with others to access such additional portions of the Property or the Building that Tenant may require for the use and operation of its Antenna Facilities, including, but not limited to, space in risers, conduits, and other areas that Tenant and Landlord determine in advance of installation are required for cable runs to connect its Antenna Facilities or to bring utilities from Landlord's telephone, power, fiber optic, and/or other utility sources, (b) all necessary non-exclusive easements for use with others for vehicular and pedestrian access to the Property, for the placement of a grounding system in the area designated on **Exhibit B**, and for access to the appropriate source of telephone, power, fiber optic, and/or other utilities determined in advance of installation with Landlord's consent, (c) a non- exclusive easement with others on, over, under, and across the Property for access, ingress, egress, communications, and utilities at no additional Rent or charge, and (d) a non-exclusive easement with others in the Building's first floor equipment room or other spaces used for the installation and operation of telecommunications, utility, or electronic systems as Tenant may determine are necessary or appropriate for use of the Antenna Facilities. All Easements are subject to the following conditions: Tenant shall not interfere with any other tenant's business operations at the Property nor shall Tenant interfere with Landlord's business operations. Landlord does not have any work to do at the Premises providing pre-existing conditions do not exist that require repair.

2. **Due Diligence and Landlord Cooperation.** After the Effective Date, Landlord shall cooperate with Tenant's due diligence activities, which may include, but not be limited to, access to the Property for inspections, testing, and permitting related to the Permitted Uses (as defined in section 3(a)). Tenant is authorized to sign, file, submit, and obtain all zoning, land use and other applications for permits, licenses, and approvals required for the Permitted Uses from all applicable governmental and quasi-governmental entities (collectively, the "**Governmental Approvals**") for the Permitted Use, and to the fullest extent necessary, Landlord grants Tenant and its agents power of attorney to take all such actions on behalf of and in the name of Landlord. Landlord's cooperation shall include the prompt execution and delivery of any documents necessary to obtain and maintain Governmental Approvals or utility services. Tenant, at its sole cost and expense, is responsible for obtaining Governmental Approvals and for compliance with all laws necessary for the Permitted Uses. Landlord shall not take any actions which are in conflict with or interfere with the Governmental Approvals. Tenant acknowledges that the Property operates as a hotel and Tenant shall not interfere with any guests or their enjoyment of the Property.

3. **Antenna Facilities and Permitted Uses.**

a. Tenant leases the Premises for the installation and operation of its equipment, personal property, and improvements associated with Tenant's wireless communications business (collectively, the "**Antenna**

Facilities"). During the Term, the Premises may be used for the construction, installation, operation, maintenance, repair, modification, upgrade, removal, or replacement of any and all Antenna Facilities within the Premises for no fee or additional consideration other than Rent (the "**Permitted Uses**") so long as such does not interfere with Landlord's or any other tenants or licenses business operations. Tenant, at its sole cost and expense, is responsible for the maintenance and repair of the Antenna Facilities and the Premises.

b. Landlord acknowledges and agrees the specific locations within the Premises, amounts, and types of Antenna Facilities described or depicted on **Exhibit B** are for illustrative purposes only and in no way limit Tenant's ability to modify, add, upgrade, remove, or replace the Antenna Facilities from time to time. The Antenna Facilities shall remain the exclusive property of Tenant and shall not be considered fixtures. Tenant, at its expense, may use any and all reasonable means as Tenant deems necessary to control, secure, or restrict access to the Antenna Facilities, providing that the securing of or restricting access does not prevent Landlord or any other tenant or licensee on the roof from use of its property. Landlord hereby waives any and all lien rights it may have concerning the Antenna Facilities.

c. If necessary to maintain service, Tenant shall have the right to locate a temporary antenna facility (e.g. a cell-on-wheels) on the Property, including all utilities associated with the use of the temporary antenna facility. Landlord shall cooperate with the placement of the temporary facility at a mutually acceptable location.

d. During the installation of the Antenna Facilities, Tenant will need to have a crane located on the Property for a period of no longer than five (5) days and the parties agree to locate such crane at a mutually agreeable location which does not interfere with access by hotel patrons to the Building.

4. **Lease Term.**

a. The Initial Term of the Lease shall be 10 years commencing on the date the earlier of (a) Tenant begins installation of the Antenna Facilities or one (1) year after lease execution (the "**Commencement Date**"), and ending on the day immediately preceding the 10th anniversary of the Commencement Date (the "**Initial Term**").

b. This Lease shall automatically renew for up to 4 successive renewal terms of 5 years each (each a "**Renewal Term**"); provided, however, Tenant may elect not to renew for a Renewal Term by providing written notice to to the landlord at least six (6) months prior to the expiration of the then current Term.

c. Upon the expiration of the final Renewal Term, this Lease shall automatically renew for up to 5 successive renewal terms of 1 year each (each, an "**Extended Period**"); provided, however, Landlord may elect not to renew by providing written notice prior to the expiration of the then current Term. Tenant may terminate any Extended Period by delivery of written notice to Landlord at least six (6) months prior to the expiration of the then current Term. The Initial Term, together with any Renewal Terms and Extended Periods, are referred to collectively as the "**Term**."

d. If Tenant remains in possession of the Premises after the expiration of this Lease without a written agreement, such tenancy shall be deemed a month-to-month tenancy under the same terms and conditions of this Lease and Rent shall be at the rate of one hundred fifty percent (150%) ("**Holdover Rate**") of the most recent Rent.

e. At the end of the Term, Tenant is obligated to remove all Antenna Facilities from the Property and any other equipment, lines, wiring, etc. installed by or on behalf of Tenant and to return the Premises to

its original condition. Tenant is responsible for any damage caused to the Property as a result of the removal minus normal wear and tear. Tenant shall continue to pay Rent to Landlord until such time as the Antenna Facilities are completely removed from the Property and in the event that such removal continues after the expiration date of this Lease, Tenant shall pay Rent at the Holdover Rate from the expiration date of this Lease until such time the removal is complete.

5. **Rent/Other Charges.**

a. Upon the Commencement Date, Tenant shall pay Landlord rent in the amount of $2,400.00 per month (the "**Rent**"). Tenant shall deliver Rent to Landlord at the address specified in the Notice section, or by electronic payment. The first Rent payment shall be due within 30 days after the Commencement Date. Subsequent Rent shall be payable by the 5th day of each month.

b. On each anniversary of the Commencement Date, Rent shall be increased by 3% over the Rent for the immediately preceding year. Rent for each Extended Period shall be increased by 3% over the Rent for the immediately preceding year.

c. Rent for any partial month shall be prorated on a per day basis, based on the number of days in the month in question. Landlord shall cooperate with Tenant regarding the use of any electronic rent payment systems or the provision of any associated documentation. Tenant may condition payment of Rent and any other sums payable under this Lease upon Tenant's receipt of a duly completed IRS form W-9 or similar governmental form.

d. Any charges payable under this Lease other than Rent shall be billed by Landlord to Tenant within 12 months from the date the charges were incurred or due; otherwise, the charges shall be deemed time-barred and forever waived and released by Landlord.

e. If Tenant determines that Tenant overpaid Landlord for any charges due under this Lease, Tenant is permitted, upon written notice to Landlord, to deduct any such overpayment from Rent amounts due under this Lease.

f. Late Fees: In the event that Tenant pays any sums owed to Landlord more than fifteen (15) days after such sum is due and owing to Landlord, the sum will incur a late fee of the lesser of 18% annual interest or the maximum allowed by law.

6. **Interference.** Tenant shall not interfere with the radio frequency communications equipment of Landlord or any of Landlord's other tenants or licenses existing as of the Effective Date, provided that such radio frequency communications equipment operates within their respective frequencies and in compliance with applicable law. After the Effective Date, Landlord shall not install, or permit any of its tenants, licensees, employees, invitees, or agents to install, any equipment or structures that interfere with the operations of Tenant. Landlord shall remove, or cause the removal of, the source of the interference within 48 hours after Tenant's delivery of written notice. Tenant shall have the right to exercise all legal and equitable rights and remedies to end the interference, including the right to terminate this Lease.

7. **Utility Services.** Tenant, at its sole cost and expense, shall have the right to connect to, maintain, repair, modify, upgrade, remove, or replace existing utility related equipment and/or construct and install new utility related equipment and lines, including a generator, optical fiber facilities and alternative energy related equipment, to service the Antenna Facilities (collectively, the "**Utility Facilities**") with written consent from Landlord on the condition that Tenant does not interfere with Landlord's or any other tenants or licenses

business operations. Landlord shall cooperate with Tenant's efforts to bring and install necessary Utility Facilities, together with any necessary easements, to enable Tenant to operate and maintain the Antenna Facilities to then current technological standards. The Utility Facilities may be brought by Tenant to the Property and the Premises, and Tenant must install either a separate meter or a submeter. The charges for utility usage (the "**Utility Fees**") shall be payable, by one of the following methods:

a. **Separate Meter**. Tenant may install a separate meter prior to the use of any electricity and will remit payment directly to the utility provider.

b. **Submeter**

i. **Smart Submeter**. Tenant may install a submeter that can be remotely managed and read ("**Smart Submeter**"). The Smart Submeter will be read by Tenant's vendor on a monthly basis, and Tenant's vendor will directly invoice Tenant for its Utility Fees based on such readings, with a copy provided to Landlord's email address. Tenant will remit payment to Landlord within 30 days of receipt of the invoice from Tenant's vendor; or

ii. **Manually-Read Submeter.** Tenant may install a sub-meter to monitor Tenant's electrical usage which will be read by Landlord on a monthly basis, and which determine Tenant's actual electrical usage. Tenant shall pay to Landlord on a monthly basis for such actual usage within 30 days of receipt of an invoice. The invoice must list the current and previous readings along with the kWh cost, and the building utility invoice must accompany the invoice.

8. **Access.**

a. Landlord shall furnish to Tenant and Tenant's employees, agents, contractors, and other designees, at no additional charge to Tenant, access to the Premises, including the Utility Facilities, on a 24-hours-a-day, 7-days-a-week basis in order for Tenant to exercise its rights and obligations under this Lease on the condition that Tenant must provide advance 24 hour written notice via email to Landlord at okasser@linchris.com except in the case of emergencies in, and Tenant shall not interfere with Landlord's or any other tenant's or licensee's business operations. Tenant acknowledges that the Property operates as a hotel and Tenant shall not interfere with any guests or their enjoyment of the Property. In the event of an emergency, Tenant shall make best efforts to provide advance notice to Landlord so that a maintenance employee can be present with Tenant and Tenant agrees to check in at the front desk upon arrival. If a maintenance employee cannot be present or notice was not received, in the case of emergency, access shall not be denied.

b. Upon the Effective Date, Landlord shall provide all applicable access key(s) and access code(s) and a defined and accessible location on the Property for Tenant to install a secure lockbox to store any such access key(s) necessary to allow physical access to all the Antenna Facilities. Landlord shall not change the method(s) of access or access key(s) without providing Tenant prior written notice and an updated set of access key(s) or new access code(s).

c. Landlord acknowledges that denial of access may adversely impact Tenant's requirement as an FCC licensee to provide 9-1-1 emergency calling services and may adversely impact Tenant's ability to provide wireless services to its customers. Landlord or its employees, agents, or contractors impede or deny access to Tenant or its employees, agents, or contractors.

9. **Termination.** Tenant may terminate this Lease upon 90 days' prior written notice to Landlord for any of the following reasons: (i) changes in local or state laws or regulations which adversely affect Tenant's ability to operate; (ii) a Federal Communications Commission ("**FCC**") ruling or regulation that is beyond the control of Tenant; (iii) in its sole discretion, for technical or economic reasons upon a six (6) month prior written notice to landlord.; or (iv) if Tenant is unable to obtain or maintain any Governmental Approval required for the construction or operation of the Antenna Facilities. Upon six (6) months' prior written notice to Landlord, Tenant may terminate this Lease for any or no reason. If the antenna facilities remain after the six (6) month period, Tenant shall continue to pay Landlord until the antenna facilities are removed in their entirety **Casualty and Condemnation.**

a. If the Premises or Antenna Facilities or any of the Easements are damaged or destroyed by wind, fire or other casualty, Tenant shall be entitled to negotiate, compromise, receive, and retain all proceeds of Tenant's insurance and other claims on the condition it does not reduce any of Landlord's proceeds, and Tenant may terminate this Lease by written notice to Landlord as of the date of damage.

b. If the Premises or Antenna Facilities or any of the Easements are taken or condemned by power of eminent domain or other governmental taking, then (i) Tenant shall be entitled to negotiate, compromise, receive, and retain all awards attributable to (a) the Antenna Facilities, (b) Tenant's leasehold interest in the Premises, (c) any moving or relocation benefit available to Tenant, and (d) any other award available to Tenant that is not attributable to Landlord's title to or interest in the Premises; and (ii) Tenant may terminate this Lease by written notice to Landlord as of the date of the taking.

c. If Tenant terminates this Lease under this Section, all rights and obligations of the parties shall cease as of the date of such termination, and Tenant shall be entitled to a reimbursement of any Rent prepaid by Tenant. If the Antenna Facilities are not operational due to casualty or condemnation, Tenant shall have the right to abate Rent for the period of time that the Antenna Facilities are not operational or accessible.

11. **Default and Remedies.**

a. Tenant shall be in default of this Lease if Tenant fails to perform of any of its covenants or obligations under this Lease and such failure continues for a period of 30 days after written notice thereof from Landlord (unless the nature of the event takes longer to cure and Tenant commences a cure within the initial 30-day period and diligently pursues it thereafter). Tenant shall also be in default of this Lease if Tenant (i) makes an assignment for the benefit of creditors, files a voluntary petition in bankruptcy, or consents to the appointment of a receiver or trustee of all or a substantial part of its business or property; and (ii) fails to affirm its obligations under this Lease (including the provision of adequate assurance to secure its financial obligations under this Lease) within 90 days after the appointment of a trustee in bankruptcy proceedings. If a default by Tenant has occurred, Landlord may pursue any remedies available to it at law or in equity including terminating this Lease upon written notice to Tenant.

b. Landlord shall be in default of this Lease if (i) Landlord fails to perform of any of its covenants or obligations under this Lease and such failure continues for a period of 30 days after written notice thereof from Tenant (unless the nature of the event takes longer to cure and Landlord commences a cure within the initial 30-day period and diligently pursues it thereafter) or (ii) Landlord fails to provide Tenant with access to the Premises as required by Section 9 and Landlord fails to cure such failure within 24 hours after receiving written notice thereof from Tenant. If a default by Landlord has occurred, Tenant may pursue any remedies available to it at law or in equity, including terminating this Lease upon written notice to Landlord..

12. **Taxes.**

a. Landlord shall pay when due all real property taxes for the Property, including the Premises. Notwithstanding the foregoing, Tenant shall reimburse Landlord for any real property taxes or any assessment paid by Landlord if the tax is attributable to the presence or installation of the Antenna Facilities during the Term. Landlord shall provide written notice of the tax bill to Tenant (which shall include a copy of the tax bill) within 15 days after Landlord's receipt of the tax bill from the taxing authority. Landlord shall promptly provide written notice to Tenant of any assessment affecting the Antenna Facilities. Landlord expressly authorizes Tenant to challenge any tax or assessment and will cooperate with Tenant in any such challenge. In the event Landlord fails to pay any taxes or other fees and assessments for the Property, including the Premises, Tenant shall have the right, but not the obligation, to pay such owed amounts and deduct them, with notice, from Rent amounts due under this Lease.

b. Tenant shall pay any real property, assessments, and personal property taxes attributable to the Antenna Facilities, if assessed, directly to the taxing jurisdiction, if possible, and if not Tenant shall reimburse Landlord within thirty (30) days after receipt of the invoice but no later than three (3) days prior to the due date. Tenant is responsible for any penalties or fees incurred if incurred as a result of Tenant's late payment.

13. **Insurance and Indemnification.**

a. As of the Effective Date, Tenant and Landlord each shall maintain Commercial General Liability Insurance in amounts of $1,000,000.00 per occurrence and $2,000,000.00 aggregate. Each party may satisfy this requirement by obtaining the appropriate endorsement to any master insurance policy such party may maintain. Tenant and Landlord shall each maintain "all risk" or "special causes of loss" property insurance on a replacement cost basis for their respectively owned real or personal property.

b. Landlord and Tenant hereby mutually release each other (and their successors or assigns) from liability and waive all right of recovery against the other for any loss or damage covered by their respective first party property insurance policies for all perils insured thereunder. In the event of an insured loss, neither party's insurance company shall have a subrogated claim against the other party.

c. Subject to the property insurance waivers set forth in the preceding subsection (b), Landlord and Tenant each agree to indemnify and hold harmless the other party from and against any and all administrative and judicial actions and rulings, claims, causes of action, demands, and liabilities, including reasonable attorneys' fees, to the extent caused by or arising out of (i) any negligent acts or omissions or willful misconduct in the operations or activities on the Property by the indemnifying party or the employees, agents, contractors, licensees, tenants, or subtenants of the indemnifying party; (ii) any spill or other release of any Hazardous Substances (as defined below) on the Property by the indemnifying party or the employees, agents, contractors, licensees, tenants, or subtenants of the indemnifying party; or (iii) any breach of any obligation of the indemnifying party under this Lease. The indemnifying party's obligations under this subsection are contingent upon its receiving prompt written notice of any event giving rise to an obligation to indemnify the other party and the indemnified party's granting it the right to control the defense and settlement of the same. In no event shall either party be liable for any consequential, special, indirect, or punitive damages or causes of loss, whether arising from breach of strict liability, contract, tort, or otherwise, and regardless of whether or not such party was advised of, or should have known, the possibility of such damages.

d. The provisions of subsections (b) and (c) above shall survive the expiration or termination of this Lease.

14. **Notices.** All notices, requests, demands, and other communications shall be in writing and shall be effective 3 business days after deposit in the U.S. mail, certified, return receipt requested or upon receipt if personally delivered or sent via a nationally recognized courier to the addresses set forth below. Landlord or Tenant may from time to time designate any other address for this purpose by providing written notice to the other party.

If to Tenant, to:
T-Mobile USA, Inc.
12920 SE 38th Street
Bellevue, WA 98006
Attn: Lease Compliance/ 9SA1858A

If to Landlord, to:
LINCHRIS TYBEE RESORT, LLC, a Delaware limited liability company
225 Water Street Suite A-125
Plymouth, MA 02360
brett@hoteltybee.com

Per the W-9 Form Rent is to be paid to:
LINCHRIS TYBEE RESORT, LLC, a Delaware limited liability company
225 Water Street Suite A-125
Plymouth, MA 02360

15. **Quiet Enjoyment, Title, Authority, and Condition of Property.**

a. Landlord covenants and warrants that (i) Landlord has full right, power, and authority to execute and perform this Lease and to grant Tenant all rights set forth in this Lease, including the leasehold interest in the Premises; (ii) Landlord has good and unencumbered title to the Property, free and clear of any liens, and will not interfere with the Permitted Uses and any rights under this Lease except for those liens, easements, etc. of record; (iii) the execution and performance of this Lease shall not violate any laws, ordinances, covenants, or the provisions of any Mortgage (as defined in Section 20(c)), lease, or other agreement binding on Landlord. Landlord is required to obtain consent from the Mortgage holder and this Lease is subject to obtaining this consent. Landlord will execute a SNDA with it mortgage lender; (iv) Tenant's use and quiet enjoyment of the Premises will not be disturbed, and Landlord shall not modify, interrupt, or interfere with any of Tenant's access, communications, utilities, or easements serving the Premises, except with the prior written approval of Tenant in each instance or as otherwise provided for in this Lease; and (v) Landlord will be responsible, at its sole cost and expense, for maintaining all portions of the Property, except for the Premises, Antenna Facilities, and equipment, in good order and condition and in compliance with all applicable laws, including without limitation, where applicable, the roof and its weatherproof membrane, any support structure owned by Landlord, HVAC, plumbing, elevators, landscaping, and common areas.

b. Tenant shall not be responsible or liable to Landlord or any third party for any claims, damages, costs, expenses, including liens, fines, penalties or other enforcement actions, attributable to any pre-existing violations of applicable laws, codes, ordinances or other regulations relating to the Property (collectively, "**Pre-Existing Violations**"). To the extent Tenant is or may be required to cure such Pre-Existing Violations in order to obtain any Governmental Approvals for its Permitted Uses of the Premises, Tenant shall have the right, but not the obligation, to cure such Pre-Existing Violations and deduct the curative costs from Rent payable under this Lease.

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16. **Environmental Laws.** Landlord and Tenant shall comply with all applicable federal, state and local laws in connection with any substances brought onto the Property that are identified by any law, ordinance or regulation, including the Comprehensive Environmental Response, Compensation and Liability Act, 42 U.S.C. § 9601 et seq., the Clean Air Act, 42 U.S.C. § 7401 et seq., and the Emergency Planning and Community Right to Know Act, 42 U.S.C. § 11001, as hazardous, toxic or dangerous (collectively, the "**Hazardous Substances**"). Tenant agrees to be responsible for all losses or damage caused by any release of Hazardous Substances that it may bring onto the Property and will indemnify Landlord for all such losses or damages. Landlord agrees to be responsible for all losses or damage caused by any Hazardous Substances on, in, about, beneath, or entering the Property, except those brought onto the Property by Tenant, and will indemnify Tenant for all such losses or damages including the cost of any investigation or remediation and reasonable attorneys' fees, or other actions required to comply with applicable law, and such indemnification shall survive the expiration or termination of this Lease. Landlord represents that it has no knowledge of any Hazardous Substances on the Property.

17. **Assignment.**

a. Tenant shall have the right to assign, sublease, or otherwise transfer this Lease upon advance written notice to Landlord. Upon an assignment or transfer but not a sublease, Tenant shall be relieved of all liabilities and obligations, and Landlord shall look solely to the transferee for performance under this Lease.

b. Landlord shall have the right to assign and transfer this Lease. with delivery to Tenant. Upon a sale or transfer of the Property, Landlord is relieved of all liabilities and obligations and Tenant shall look solely to the new landlord for performance under this Lease. Until Tenant receives required information and documents, Tenant shall not be responsible for any failure to make payments under this Lease and reserves the right to hold payments due under this Lease. Landlord shall not attempt to assign or otherwise transfer this Lease separate from a transfer of ownership of the Property (the "**Severance Transaction**"), without the prior written consent of Tenant, which consent may be withheld or conditioned, in Tenant's sole discretion. If Tenant consents to a Severance Transaction, Landlord and its successors and assigns shall remain jointly and severally responsible for the performance of all duties and obligations of Landlord under this Lease.

18. **Marking and Lighting Requirements.** If any tower or other support structure for the Antenna Facilities is owned by Landlord, Landlord acknowledges that Landlord shall be responsible for compliance with all marking and lighting requirements of the Federal Aviation Administration (the "**FAA**") and the FCC. Landlord shall indemnify and hold Tenant harmless from any fines or other liabilities caused by Landlord's failure to comply with these requirements. Tenant, at its sole cost and expense, is responsible for any compliance associated with the installation of the Antenna Facilities for compliance with any marking or lighting requirements of the FAA and the FCC.

19. **Confidentiality.** Both parties agrees that neither party will not disclose any of the terms, covenants, conditions, or agreements set forth in this Lease or any amendments hereto, nor will either party provide copies of this Lease or any amendments hereto, to any person, except for the party's employees, consultants, or advisors, provided that such parties have a need to know such information and are obligated to keep such information confidential.

20. **Miscellaneous.**

a. The prevailing party in any litigation or other legal proceedings arising under this Lease (including any appeals and any insolvency actions) shall be entitled to reimbursement from the non-prevailing party for reasonable attorneys' fees and expenses actually incurred.

b. This Lease constitutes the entire agreement and understanding of the parties, and supersedes all offers, negotiations and other agreements with respect to the subject matter and Property. Any amendments to this Lease must be in writing and executed by both parties.

c. Landlord agrees to cooperate with Tenant in executing any documents which Tenant deems necessary to insure and protect Tenant's rights in, or use of, the Premises. Landlord shall execute and deliver (i) a Memorandum of Lease in substantially the form attached as **Exhibit C**; and (ii) if the Property is encumbered by a deed to secure debt, mortgage or other security interest (each, a "**Mortgage**"), a subordination, non-disturbance and attornment agreement using Tenant's form.

d. This Lease shall be construed in accordance with the laws of the state or territory in which the Property is located, without regard to the principles of conflicts of law.

e. If any term of this Lease is found to be void or invalid, the remaining terms of this Lease shall continue in full force and effect. Any questions of particular interpretation shall be interpreted as to their fair meaning.

f. Each party hereby represents and warrants to the other that this Lease has been duly authorized, executed and delivered by it, and that no consent or approval is required by any lender or other person or entity in connection with the execution or performance of this Lease.

g. If either party is represented by any broker or any other leasing agent, such party is responsible for all commission fee or other payment to such agent.

h. This Lease and the interests granted herein shall run with the land and shall be binding upon and inure to the benefit of the parties, their respective successors, personal representatives, and assigns.

i. This Lease may be executed in any number of counterparts, each of which shall be deemed an original, but all of which together shall constitute a single instrument. Signed, scanned and emailed copy and electronic copies of this Lease shall legally bind the parties to the same extent as original documents.

j. Tenant or Landlord will, within 30 Business Days' after a written request from the other party (but no more than once a calendar year), execute, acknowledge, and deliver to the specified third party, a statement in writing (a) certifying that this Lease is unmodified (or, if modified, identifying the modifications), (b) confirming the date through which Rent is paid, (c) acknowledging that there are not, to such party's knowledge, any uncured defaults on the part of either party hereto (or, specifying such defaults, if any, are claimed), and (d) confirming the status of the Term.

[Signatures on following page]

LANDLORD:

LINCHRIS TYBEE RESORT, LLC, a Delaware limited liability company

By: _____

Printed Name: _____

Title: _____

Date: _____

TENANT:

T-Mobile South LLC,
a Delaware Limited Liability Company

By: _____

Printed Name: _____

Title: _____

Date: _____

EXHIBIT A
Legal Description

Property address of 1401 Strand Ave, Tybee Island, GA 31328
Assessor's tax parcel number of 40008 01013

The Property is legally described as follows:
LOTS 4,5,G,H, & PT 1 RESUB OF 85 WD 4

EXHIBIT B
Premises Description

Subject to the terms and conditions of this Lease, the location of the Premises is generally described and depicted as shown below or in the immediately following attachment(s).

The Premises are described as the rooftop of a hotel.

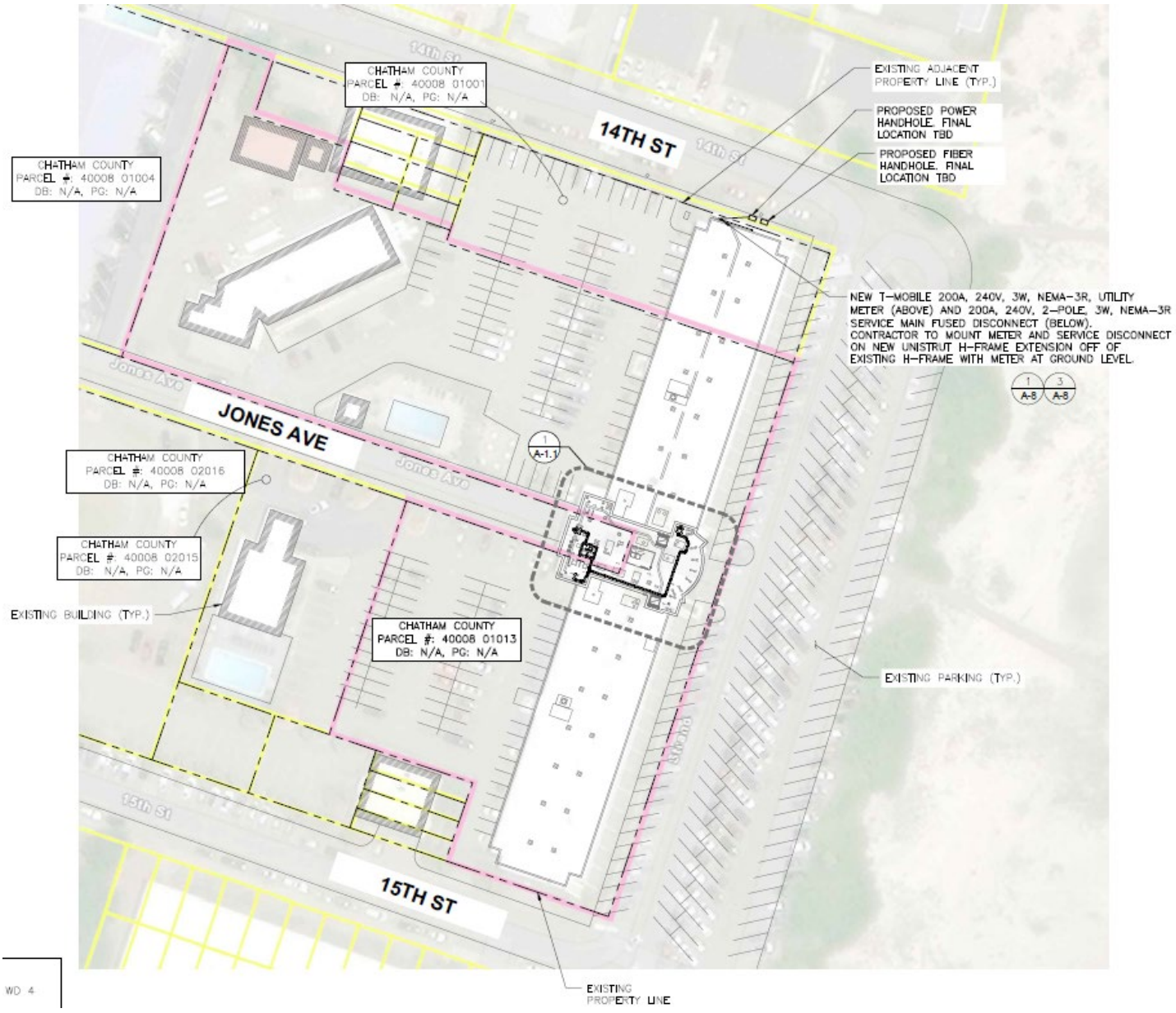


EXHIBIT B
(Continued)

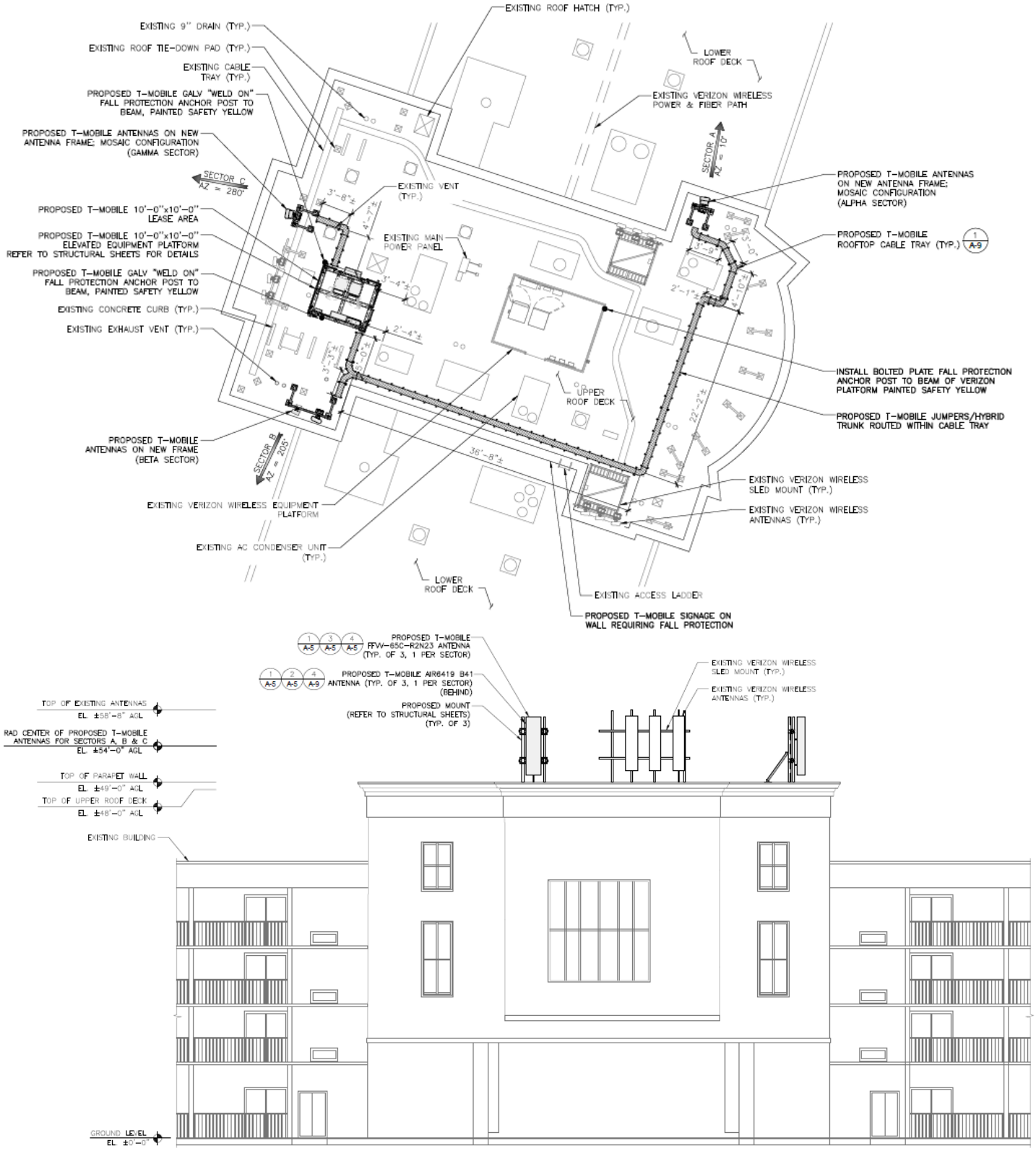


EXHIBIT C
Memorandum of Lease

(Separate Document to be Executed)

Memorandum
of
Lease

After Recording, Mail To:
T-Mobile USA, Inc.
12920 SE 38th Street
Bellevue, WA 98006
Attn: Lease Compliance
Site Number: 9SA1858A

APN: 40008 01013

MEMORANDUM OF LEASE

A Site Lease Agreement (the "Lease") by and between LINCHRIS TYBEE RESORT, LLC, a Delaware limited liability company , a Limited Liability Company ("Landlord"), and **T-Mobile South LLC**, a Delaware Limited Liability Company ("Tenant") was made regarding a portion of the following property (as more particularly described in the Lease, the "Premises"):

See Attached **Exhibit A** incorporated herein for all purposes.

Without limiting the terms and conditions of the Lease, Landlord and Tenant hereby acknowledge the following:

1. Capitalized terms used, but not otherwise defined herein, shall have the meanings ascribed to such terms in the Lease.
2. The Initial Term of the Lease shall be for 10 years and will commence on the date that Tenant begins installation of its equipment.
3. Tenant shall have the right to extend the Lease for 4 additional and successive 5-year terms which may be extended for up to 5 additional and successive 1-year periods.
4. This memorandum is not a complete summary of the Lease. It is being executed and recorded solely to give public record notice of the existence of the Lease with respect to the Premises. Provisions in this

memorandum shall not be used in interpreting the Lease provisions and in the event of conflict between this memorandum and the said unrecorded Lease, the unrecorded Lease shall control.

5. This memorandum may be signed in any number of counterparts, each of which shall be an original, with the same effect as if the signatures thereto were upon the same instrument.

IN WITNESS WHEREOF, the parties hereto have respectively executed this memorandum effective as of the date of the last party to sign.

LANDLORD: <Landlord Name>,
a(n) <Landlord entity type>

By: _____

Printed Name: _____

Title: _____

Date: _____

Example Only
Execute As Separate Document

TENANT: <T-Mobile Market Entity Name>,
a Delaware <T-Mobile entity type>

By: _____

Printed Name: _____

Title: _____

Date: _____

Example Only
Execute As Separate Document

[Notary block for Landlord] **[Substitute State-Specific Acknowledgement Form if Content Differs]**

[Landlord Notary block for a Corporation, Partnership, or Limited Liability Company]

STATE OF _____)
) ss.
COUNTY OF _____)

This instrument was acknowledged before me on _____ by _____, [title] _____ of _____ a _____ [type of entity], on behalf of said _____ [name of entity].

Dated: _____

_____
Notary Public
Print Name _____
My commission expires _____

(Use this space for notary stamp/seal)

[Landlord Notary block for an Individual]

STATE OF _____)
) ss.
COUNTY OF _____)

This instrument was acknowledged before me on _____ by _____ , an individual.

Dated: _____

_____
Notary Public
Print Name _____
My commission expires _____

(Use this space for notary stamp/seal)

[Notary block for Tenant]

STATE OF _____)
) ss.
COUNTY OF _____)

I certify that I know or have satisfactory evidence that _____ is the person who appeared before me, and said person acknowledged that they signed this instrument, on oath stated that they were authorized to execute the instrument and acknowledged it as the _____ of **<T-Mobile Market Entity Name>**, a Delaware <T-Mobile entity type>, to be the free and voluntary act of such party for the uses and purposes mentioned in the instrument.

Dated: _____

_____
Notary Public
Print Name _____
My commission expires _____

(Use this space for notary stamp/seal)

Memorandum of Lease - Exhibit A
Legal Description

The Property is legally described as follows:

LOTS 4,5,G,H, & PT 1 RESUB OF 85 WD 4